



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

September 22, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21296
(FIRST REVISION)

EXPIRATION DATE: 2027-08-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Lockheed Martin Corporation
Bethesda, MD
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of low production lithium ion batteries contained in equipment (bus or spacecraft) by motor vehicle. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted for this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.185(a)(1) in that each lithium battery must be of the type proven to meet the criteria in Part III, subsection 38.3 of the UN Manual of Tests and Criteria, except as specified herein.
5. BASIS: This special permit is based on the application of Lockheed Martin Corporation dated September 14, 2023, submitted in accordance with § 107.109.

Tracking Number: 2023094540

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries contained in equipment including lithium ion polymer batteries*	9	UN3481	N/A

*Only low production lithium ion batteries contained in equipment (bus or spacecraft) (“Low production” is defined as a production run of no more than 100 cells or batteries annually of a particular type) may be offered for transportation and transported under the terms of this special permit.

7. SAFETY CONTROL MEASURES:a. Safety Controls:

- (1) The low production lithium ion batteries of types with modules electrically connected in configurations contained in equipment (two types of equipment: buses or spacecraft) and with the number of cells as described in the application on file with the Office of Hazardous Materials Safety (OHMS) may be offered for transportation under the terms of this special permit. Each different battery type must comply with all the conditions of this special permit prior to being offered for transportation.
- (2) The battery contained in equipment (bus or spacecraft) must be equipped with an effective means of preventing dangerous reverse current flow if batteries or cells are connected in parallel.
- (3) Cells and batteries contained in equipment must be protected against short circuiting.
- (4) All buses and spacecraft containing the lithium ion batteries must be prepared by Lockheed Martin in accordance with the Hazardous Materials Regulations (HMR) and special permit conditions.

b. Testing Requirements:

- (1) All lithium ion batteries contained in equipment must be comprised of lithium ion cells of a type (ANR26650m1B) that has passed all required tests as specified in the UN Manual of Tests and Criteria, sixth Revised Edition.
- (2) The batteries contained in equipment need not be of a type that has passed the tests as specified in the UN Manual of Tests and Criteria.

c. Packaging: Prescribed packaging is as follows:

- (1) All lithium ion batteries contained in equipment must have a strong impact-resistant outer casing and be securely encased in and attached to the rigid satellite structure.
- (2) Outer Packaging: Each bus or spacecraft must be mounted within a Lockheed Martin designed “dolly” with a protection frame and a non-flammable cover as described in Lockheed Martin Corporation’s application dated October 6, 2021, and on file with the OHMS.
- (3) The number and the net weight of the batteries in each package may not exceed those specified in the application on file with the OMHS.

d. MARKING: The outer packaging containing the bus or spacecraft must be marked on two sides in letters at least 2 inches high on a contrasting background with “DOT-SP 21296”.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

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